

TENTATIVE RULING

RANCH HOUSE PLACE ASSOCIATION v. ALL MEMBERS OF RANCH HOUSE PLACE ASSOCIATION (26CV003431)

Ranch House Place Association's Petition for Order to Reduce Required Approval Percentage and Amend CC&Rs

By this Petition, Petitioner Ranch House Place Association ("Ranch House"), a homeowners association, seeks an order:

- (1) modifying its approval requirements for amendment and restatement of its CC&Rs from 66.67% of its members to 65% of its members; and
- (2) confirming that its proposed restated CC&Rs which were approved by 65% of its members in a May 6, 2026 election, are approved.

The Motion is CONTINUED to Friday, October 2, 2026, at 8:30 a.m. in Department 13A, and additional information is requested.

Pursuant to California Civil Code section 4275, in order to grant the relief sought, the court must make certain findings, including that the proposed amendments to the CC&Rs are reasonable and that they are not improper for any reason stated in section 4275(e). Although the original CC&Rs and the proposed amended CC&Rs are provided, these documents are extensive and do not make the proposed changes evident. An overview of some of the benefits of the changes is provided in the Declaration of Karen St. Onge, but no complete explanation of the proposed changes is provided in the Petition or supporting papers. In order to make the above two findings required by section 4275(c), the court requires an explanation of all of the proposed changes to the CC&Rs, and an explanation of how the proposed changes bring the CC&Rs into compliance with the law. At a minimum, Petitioner should provide the "comparison chart" provided to the members, as referenced in the Declaration of Sheila Kaplan.

Supplemental information supporting the petition must be filed and served on or before September 11, 2026.

Petitioner is to prepare the court's order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.